

Ashok Kumar v. U.P. Power Corporation Ltd. & Others

High Court of Judicature at Allahabad · Division Bench · 2 December 2016 · Writ-C No. 44093 of 2007 · **Writ dismissed; liberty to seek Supply Code statutory remedy.**

HEADNOTE

Writ challenging a Purvanchal Vidyut Vitran Nigam demand was dismissed with liberty to the consumer to pursue the statutory remedy under the Electricity Supply Code, 2005 at the first instance. The Court did not decide the demand on merits.

FACTUAL SUMMARY

Ashok Kumar petitioned the High Court in 2007 against U.P. Power Corporation Ltd. and others over a demand raised by Purvanchal Vidyut Vitran Nigam Ltd., Allahabad. After listing in 2012 for appearance of respondents' counsel and a counter-affidavit, the writ was heard on 2 December 2016 by Arun Tandon and Sangeeta Chandra, JJ. Counsel for the petitioner then submitted that the petitioner would first take the statutory remedy under the Electricity Supply Code, 2005 against the demand.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

statutory remedy against demand

HOLDING

After argument, the petitioner elected to seek the statutory remedy under the Electricity Supply Code, 2005 against the demand of Purvanchal Vidyut Vitran Nigam Ltd., Allahabad. The writ was dismissed with that liberty; the demand was not decided on merits. ¶ 1-2

FLAG order invokes Electricity Supply Code-2005 generally; no clause numbered

PRINCIPLE TAGS

relegate-to-statutory-remedy Writ challenging a Purvanchal Vidyut Vitran Nigam demand was dismissed with liberty to the consumer to pursue the statutory remedy under the Electricity Supply Code, 2005 at the first instance. The Court did not decide the demand on merits. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND RAISED BY PURVANCHAL VIDYUT VITRAN NIGAM LTD.
Petitioner relegated to the Supply Code, 2005 statutory remedy; writ dismissed with liberty. ¶ 1-2